

PR-25-000158 In the Matter of THE CRUZ FAMILY TRUST – Trustee Joel Cruz's Motion for Judgment on the Pleadings to the Petition for Elder or Dependent Adult Financial Abuse with Wrongful Taking; for Exemplary Damages and Attorney's Fees and Costs – GRANTED in part and DENIED in part.

County: stanislaus

Division: Probate

Department: 22

Hearing date: 2026-08-03

Motion: Respondent Joel Cruz's Motion for Judgment on the Pleadings is GRANTED in part and DENIED in part. A motion for judgment on the pleadings serves substantially the same function as a general demurrer and attacks only defects disclosed on the face of the pleadings or by matters that may be judicially noticed. (Cloud v. Northrop Grumman Corp. (1998) 67 Cal.App.4th 995, 999.) In ruling on such a motion, the Court accepts as true all material facts properly pleaded, but not contentions, deductions, or conclusions of law. (Stoops v. Abbassi (2002) 100 Cal.App.4th 644, 650.) A respondent may move for judgment on the pleadings on the ground that the court lacks jurisdiction over the cause of action alleged or that the petition fails to state facts sufficient to constitute a cause of action against the respondent. (Code Civ. Proc., § 438(c)(1)(B).) The Court GRANTS Respondent's unopposed request that the Court take judicial notice of the petition and supplement, along with attached exhibits. A. Allegations Relating to Scott Cruz The motion is DENIED insofar as it challenges the sufficiency of the allegations that Scott Cruz was a dependent adult. Welfare and Institutions Code § 15610.23 defines a dependent adult, in relevant part, as a person between the ages of 18 and 64 who has physical or mental limitations that restrict his or her ability to carry out normal activities or protect his or her rights. Petitioner alleges that Scott Cruz was suffering from cancer prior to his death and expressly alleges that Scott was a dependent adult. The petition further alleges that Respondent wrongfully withheld trust assets during the period in which Scott was suffering from that condition. Drawing all reasonable inferences in Petitioner's favor, as the Court must at the pleading stage, the Court concludes these allegations are sufficient to support the inference that Scott's illness impaired his ability to carry out normal activities or protect his rights. The petition need only allege ultimate facts and need not plead evidentiary facts. Whether Scott ultimately qualifies as a dependent adult within the meaning of the statute is a factual issue that cannot be resolved on a motion for judgment on the pleadings. Respondent's arguments that Scott continued to engage in certain activities despite his illness may be relevant to the merits of the claim, but do not establish that the claim fails as a matter of law on the face of the pleading. Accordingly, the motion is denied as to the allegations premised on abuse allegedly suffered by Scott Cruz. B. Allegations Relating to Mark Cruz The motion is GRANTED insofar as it challenges Petitioner's standing to pursue claims predicated on abuse allegedly suffered by Mark Cruz. The petition alleges that Petitioner is Scott Cruz's surviving spouse and successor in interest. But the petition does not allege that Petitioner is Mark Cruz's personal representative, successor in interest, heir, or other person authorized to pursue claims belonging to Mark Cruz. Instead, the petition alleges that Mark was survived by three children and seeks recovery of trust assets allegedly owed to those children. Although the petition asserts that Mark suffered from mental illness and required assistance with activities of daily living, the Court agrees with Respondent that the petition fails to allege facts establishing Petitioner's standing to prosecute a dependent-adult-financial-abuse claim on Mark's behalf. Accordingly, the motion is granted as to the dependent-adult-financial-abuse allegations premised upon injuries allegedly suffered by Mark Cruz. C. Leave to Amend The Court GRANTS leave to amend. Petitioner did not identify in her opposition how the standing defect could be cured and instead maintained that the petition is presently sufficient. Nevertheless, this is the first pleading challenge directed at these allegations. California law strongly favors permitting amendment where there remains a reasonable possibility that a defect may be cured. On the present record, the Court cannot conclude that amendment would necessarily be futile. Petitioner shall file and serve any amended pleading within 20 days after service of the signed order. Disposition For the foregoing reasons, the motion for judgment on the pleadings is: - DENIED as to allegations and claims arising from the alleged dependent-adult abuse of Scott Cruz; and - GRANTED with 20 days' leave to amend as to allegations and claims arising from the alleged dependent-adult abuse of Mark Cruz. Respondent to submit a proposed order within five court days that is consistent with this ruling. The following are the tentative rulings for cases calendared before Judge Clifford Tong in Department 23:

Source URL: <https://www.stanislaus.courts.ca.gov/online-services/tentative-rulings/civil-tentative-rulings>

Source SHA-256: 327a2e13e710495c36f6433e7dd7c5cfb418571df6e58dc554b100447a847a8f

PR-25-000158 – In the Matter of THE CRUZ FAMILY TRUST – Trustee Joel Cruz's Motion for Judgment on the Pleadings to the Petition for Elder or Dependent Adult Financial Abuse with Wrongful Taking; for Exemplary Damages and Attorney's Fees and Costs – GRANTED in part and DENIED in part.

Respondent Joel Cruz's Motion for Judgment on the Pleadings is GRANTED in part and DENIED in part.

A motion for judgment on the pleadings serves substantially the same function as a general demurrer and attacks only defects disclosed on the face of the pleadings or by matters that may be judicially noticed. (Cloud v. Northrop Grumman Corp. (1998) 67 Cal.App.4th 995, 999.) In ruling on such a motion, the Court accepts as true all material facts properly pleaded, but not contentions, deductions, or conclusions of law. (Stoops v. Abbassi (2002) 100 Cal.App.4th 644, 650.) A respondent may move for judgment on the pleadings on the ground that the court lacks jurisdiction over the cause of action alleged or that the petition fails to state facts sufficient to constitute a cause of action against the respondent. (Code Civ. Proc., § 438(c)(1)(B).)

The Court GRANTS Respondent's unopposed request that the Court take judicial notice of the petition and supplement, along with attached exhibits.

A. Allegations Relating to Scott Cruz

The motion is DENIED insofar as it challenges the sufficiency of the allegations that Scott Cruz was a dependent adult.

Welfare and Institutions Code § 15610.23 defines a dependent adult, in relevant part, as a person between the ages of 18 and 64 who has physical or mental limitations that restrict his or her ability to carry out normal activities or protect his or her rights. Petitioner alleges that Scott Cruz was suffering from cancer prior to his death and expressly alleges that Scott was a dependent adult. The petition further alleges that Respondent wrongfully withheld trust assets during the period in which Scott was suffering from that condition.

Drawing all reasonable inferences in Petitioner's favor, as the Court must at the pleading stage, the Court concludes these allegations are sufficient to support the inference that Scott's illness impaired his ability to carry out normal activities or protect his rights. The petition need only allege ultimate facts and need not plead evidentiary facts. Whether Scott ultimately qualifies as a dependent adult within the meaning of the statute is a factual issue that cannot be resolved on a motion for judgment on the pleadings.

Respondent's arguments that Scott continued to engage in certain activities despite his illness may be relevant to the merits of the claim, but do not establish that the claim fails as a matter of law on the face of the pleading.

Accordingly, the motion is denied as to the allegations premised on abuse allegedly suffered by Scott Cruz.

B. Allegations Relating to Mark Cruz

The motion is GRANTED insofar as it challenges Petitioner's standing to pursue claims predicated on abuse allegedly suffered by Mark Cruz.

The petition alleges that Petitioner is Scott Cruz's surviving spouse and successor in interest. But the petition does not allege that Petitioner is Mark Cruz's personal representative, successor in interest, heir, or other person authorized to pursue claims belonging to Mark Cruz. Instead, the petition alleges that Mark was survived by three children and seeks recovery of trust assets allegedly owed to those children.

Although the petition asserts that Mark suffered from mental illness and required assistance with activities of daily living, the Court agrees with Respondent that the petition fails to allege facts establishing Petitioner's standing to prosecute a dependent-adult-financial-abuse claim on Mark's behalf.

Accordingly, the motion is granted as to the dependent-adult-financial-abuse allegations premised upon injuries allegedly suffered by Mark Cruz.

C. Leave to Amend

The Court GRANTS leave to amend.

Petitioner did not identify in her opposition how the standing defect could be cured and instead maintained that the petition is presently sufficient. Nevertheless, this is the first pleading challenge directed at these allegations. California law strongly favors permitting amendment where there remains a reasonable possibility that a defect may be cured. On the present record, the Court cannot conclude that amendment would necessarily be futile.

Petitioner shall file and serve any amended pleading within 20 days after service of the signed order.

Disposition

For the foregoing reasons, the motion for judgment on the pleadings is:

- DENIED as to allegations and claims arising from the alleged dependent-adult abuse of Scott Cruz; and
- GRANTED with 20 days' leave to amend as to allegations and claims arising from the alleged dependent-adult abuse of Mark Cruz.

Respondent to submit a proposed order within five court days that is consistent with this ruling.

The following are the tentative rulings for cases calendared before Judge Clifford Tong in Department 23: